

		prejudice to the client's interests, " (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has failed to comply with the requirements of California Rules of Court rule 3.1362. While Counsel has served the motion papers upon Plaintiff Luke Mensink, Counsel has not stated in his declaration that Counsel has 1) confirmed within the last 30 days that the address is the client's current address or 2) that the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (See Decl. in Supp. of Att'y's Mot. to Be Relieved as Counsel – Civil, ¶ 3.) In addition, Counsel has not filed or served a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053). The California Rules of Court require that "[w]herever applicable, [mandatory forms] must be used by all parties . . ." (Cal. Rules of Court, rule 1.31(a).) Therefore, the court will continue the hearing on this motion and order that Counsel file and serve a Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-052) and a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that have been completely and correctly filled out. The court may deny the motion if Counsel fails to supplement the motion papers as required. Counsel shall give notice of this ruling in the manner ordered by the court.
2	MacRobie vs. Forward Financing LLC 30-2026-01552515	<u>Application to Appear Pro Hac Vice</u> The Verified Application for <i>Pro Hac Vice</i> Admission of Courtney L. Hayden is GRANTED. <u>Pending Motion</u>

		Counsel Courtney L. Hayden of Goodwin Procter LLP in Boston, Massachusetts applies to appear as counsel <i>pro hac vice</i> for Defendant Forward Financing LLC. <u>Standards to Appear <i>Pro Hac Vice</i></u> An attorney in good standing in another jurisdiction who has been retained to appear in a case pending this court may apply to appear as counsel <i>pro hac vice</i> in the State of California, so long as an active member of the State Bar of California is associated as attorney of record in the case. (Cal. Rules of Court, rule 9.40(a).) The attorney desiring admission <i>pro hac vice</i> must file a verified application and a proof of service showing service by mail of a copy of the notice of hearing and application on all parties who have appeared in the case and on the State Bar of California at its San Francisco office, along with payment of a \$50.00 fee. (Cal. Rules of Court, rule 9.40(c)(1) & (e).) The application must state: 1. the applicant's residence and office addresses; 2. the courts to which the applicant has been admitted to practice and the dates of admission; 3. that the applicant is a member in good standing in those courts; 4. that the applicant is not currently suspended or disbarred in any court; 5. the title of each court and cause in which the applicant has filed an application to appear as counsel <i>pro hac vice</i> in this state in the preceding two years, the date of each application, and whether or not it was granted; and 6. the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d).) The "application to be admitted 'pro hac vice' is addressed to the court's sound discretion." (<i>Big Lots Stores, Inc. v. Superior Court of San Diego County</i> (2020) 57 Cal.App.5th 773, 779.) However, courts have "embraced the conviction 'that the state should keep to a necessary minimum its interference with the individual's desire to defend himself in whatever
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		manner he deems best.” (<i>Magee v. Superior Court</i> (1973) 8 Cal.3d 949, 952, quoting <i>People v. Crovedi</i> (1966) 65 Cal.2d 199, 208.) Thus, the “right to appear by retained counsel of one’s choice will tolerate the denial of an application for association only in extreme circumstances, although the attorney permitted to appear as counsel <i>pro hac vice</i> is “subject to the jurisdiction of the courts of California with respect to the law governing the conduct of attorneys.” (<i>Magee v. Superior Court</i> (1973) 8 Cal.3d 949, 953, fn. 1.) Here, all of the requirements for <i>pro hac vice</i> admission have been met and the application is not opposed. The court will therefore grant the application. Defendant shall give notice of this ruling.
3	Iserhien vs. The Irvine Company LLC 30-2026-01539629	<u>Motion to Compel Arbitration</u> Defendants The Irvine Company LLC’s and Pilar Swenson’s Motion Petitioning this Court to Stay this Action and Compel Arbitration is GRANTED. The parties are ORDERED to arbitrate the claims between them that are asserted in this action. This action shall be STAYED pending completion of the arbitration proceedings. The court SETS an ADR Review Hearing for January 21, 2027, at 10:00 a.m. in Department N15. <u>Pending Motion</u> Defendant The Irvine Company LLC’s and Pilar Swenson move to compel arbitration of the claims asserted in the Complaint – Personal Injury, Property Damage, Wrongful Death (Complaint) filed by Plaintiff Brenna Emilia Valentina Iserhien and to stay this action pending completion of the arbitration proceedings. <u>Standard for Compelling Arbitration</u> The law of this state with respect to arbitration agreements is contained in the California Arbitration Act (CAA), Civil Procedure Code section 1280, <i>et seq.</i> Under the CAA, when a party to an arbitration agreement refuses to submit to arbitration, the other party may petition